Statement for: Applicant

Statement of: M.W. Peachman

First Statement

Dated: 14.12.2016

No Exhibits

IN THE HIGH COURT OF JUSTICE CLAIM NUMBER: 4763 of 2005

CHANCERY DIVISION

COMPANIES COURT

Between:

Thomas Haederle **Applicant**

-and-

Dierk Thomas **Respondent**

WITNESS STATEMENT OF MARK WAYNE PEACHMAN

I, Mark Wayne Peachman, of Offices 4 & 5, The Motorsport Hangar, Long Stratton, Norwich, NR15 2PD, Professional Investigator, will state as follows:

1. That I was instructed by the Applicant to attend at Eastward Skies, Hill House, Norwich Road, Roughton, Norwich, NR11 8ND, to confirm if this was the correct residential address for the Respondent. I was informed that the Respondent had supplied that address to the Court as his current place of residence.

Signed: **Dated:**

2. I did attend at Eastward Skies, Hill House, Norwich Road, Roughton, Norwich, NR11 8ND ('Eastward Skies') from 1710 hours on Tuesday the 13.12.2016, when I found this to be a fairly large detached property, which was in darkness and I received no reply there.

3. Immediately thereafter I attended the closest neighbouring property, effectively within the same grounds and noted to be called 'The Wash House'. There I met with an adult white female, possibly aged in her forties, who confirmed herself to be Mrs Melanie Hickling. It had already been established that Mrs Hickling was the current joint owner of the land encompassing Eastward Skies. In answer to my enquiry, Mrs Hickling confirmed that she had previously rented Eastward Skies to the Respondent, Dierk Thomas, but he had not resided there since September 2015. Mrs Hickling stated that she had no forwarding address for the Respondent, merely understanding that he was somewhere "overseas". Mrs Hickling said that the only point of contact she had for the Respondent was an e-mail address, namely dierkthomas@me.com.

4. Mrs Hickling informed me that she had first become acquainted with the Respondent because their children attended the same school. Subsequent to this, it was gathered that Mrs Hickling had rented Eastward Skies to the Respondent. I informed Mrs Hickling that the Respondent had told the Court that Eastward Skies continued to be his residence and she readily confirmed that this was untrue and commented "I won't lie for anyone". Mrs Hickling did however make it clear that she was not prepared to get involved with these proceedings, so it is unlikely that she would make a Statement.

5. I did inform Mrs Hickling that I had documentation to be passed on to the Respondent in connection with these proceedings, but was satisfied by her assertion that she had no point of contact with him, other than the above e-mail address, furthermore had no indication as to when she was next likely to see or hear from the Respondent. Mrs Hickling said that she occasionally heard from the Respondent by e-mail, furthermore that he had "popped back" for a visit sometime earlier this year she recalled mid-September 2016.

I believe that the facts stated in this Witness Statement are true.

Signed: **Dated:** 14 December 2016